

Monsanto, Lawyers, Lies and Videotape

Seeds of Censorship Sown at University of Manitoba

[Jim Sanders](#) / August 31, 2005 / 8 min read

FOOD AND AGRICULTURE

Completed more than two years ago, *Seeds of Change* was my first feature documentary film. The documentary was supposed to facilitate communication among farmers and the residents of rural communities regarding the effects of the new technologies associated with Genetically Modified Crops (GMCs). Farmers and the public have yet to see the video because the original goal has been subverted.

GMCs in Western Canada

In spring of 2002, Dr. Stephane McLachlan, a professor associated with the Environmental Conservation Lab at the University of Manitoba, approached me to assist him with a documentary video. Dr. McLachlan had just received a research grant from the Social Sciences and Humanities Research Council of Canada (SSHRC) to support research on the risks and benefits of genetically modified crops for farmers and rural communities in Western Canada. The stated goal of the documentary was “to bring opinions, concerns and local knowledge of rural communities to the forefront of the GMC debate” and to “bridge the impasse amongst stakeholders, facilitating communication, and depolarizing of the GM crop debate.” The video was to focus local knowledge of farmers as an alternative to the expert-based science that had been

dominating the debate.

Working together with one of Dr. McLachlan's students, Ian Mauro, I was hired to make the video. The idea that those who have direct experience with crops know most about them made sense to me. I was also intrigued that a video highlighting local-based, non-expert knowledge could be created within the university.

The two of us set out on a four-month journey across the country, interviewing a wide variety of farmers, plus some experts and scientists. In Edmonton, we interviewed Vandana Shiva, an environmentalist visiting from India; the head of the Western Barley's Growers Association; and Mauro's grandmother out on her farm. We headed to Toronto where we documented David Suzuki at the BIOjustice protest picnic, and on the same day manouvered ourselves into the Biotechnology Industry Organization annual convention. There we saw Patrick Moore, co-founder of Greenpeace and former student of Suzuki's, delivering a speech in favour of biotechnology.

In Manitoba, we traveled from farm to farm, interviewing conventional farmers, GMC farmers and organic farmers. We were interested in their opinions on the risks and the benefits of GM crops. We were also interested in their views on rural decline, for it soon became clear that the farmers were in trouble. Rural communities were disappearing. Farm debt was out of control, and the new GM technology had not produced the promised results. The payment of Technology Use Agreement (TUA) fees by the biotech companies ate into whatever little profits farmers could make, while the increased input costs and technology fed into a system based on economies-of-scale. This ensures that family farms become extinct, replaced by bigger corporate farms.

Corporate Contamination

The corporate takeover of agriculture in Western Canada goes hand-in-hand with the rise of biotechnology and chemical companies. After the introduction of GM Canola in Western Canada in 1996, many farmers began to notice disturbing signs. Canola's susceptibility to cross-pollination, and the resulting contamination of other non-GM varieties, began taking its toll. By using Monsanto's Roundup Ready Herbicide (glyphosate) to burn off their weeds in the spring, instead of tilling, farmers had revolutionized soil conservation. However, they were also noticing an increasing

number of GM contaminated, glyphosate-resistant “super weeds” in their fields. These were rendering their zero-till practice all but useless.

One study demonstrated that within five years, the herbicide-tolerant gene used by Monsanto had contaminated all the Canola seed in Western Canada. This also had dire consequences for organic Canola growers since due to genetic contamination, they could no longer guarantee their product as being organic.

As we were entering the editing stage, the Seeds of Change documentary project gained momentum. We received an injection fund of \$35,000 from a local private investor.

The Mask of Monsanto

Monsanto, the multinational chemical company based in St. Louis, Missouri, had become the focus of our film. At the time, this firm controlled 91 percent of the global GM seed market, including most of the GM Canola used by producers in Western Canada. In 1999 Monsanto occupied research facilities at the University of Manitoba, where it continued to develop gm canola and other gmcs in partnership with agriculture canada. this is the same university where Baldur Stefannson discovered canola over thirty years earlier.

By November 2002, the film required only the addition of music, and I headed to South America for six months to work on another film. When I returned in the spring of 2003, I was dismayed to find that the Seeds of Change project had unraveled as soon as members of the University of Manitoba administration had seen the documentary.

Lawyers, Lies and Videotape

Just before I had headed off to South America, our film’s private investor had met with Alan Simms, the Associate Vice-President of Administration at the University of Manitoba, regarding the University’s interest in our film as intellectual property created on campus. Our private investor was concerned about the film being suppressed by the University and wanted to secure its release to the public. At this meeting, Alan Simms and our investor made a deal for the film’s release. This promise had now been broken. There was no release, and our investor wanted out and his money back. He threatened

to sue.



Representatives of the University administration started to pressure Dr. McLachlan. They warned him that if the film was shown publicly the University's insurance policy could lapse. Obviously, their concern was that Monsanto would sue. When the University discovered I was planning to screen the Seeds of Change film at a local coffeehouse in Winnipeg, the University lawyer sent me a letter stating: "The University would consider such a release of the video to be illegal and would take legal action to protect its interest in the video."

While Dr. McLachlan and Mauro had to be concerned about such threats, as an independent filmmaker, I did not have to answer to the University.

The University declared that it would transfer the rights to the film to Dr. McLachlan, Mauro and myself, if we could insure the film. Furthermore, it wanted us, or our investor, to indemnify the University in case of a lawsuit. At this point it became clear that the behaviour of the University's representatives, and especially of Alan Simms, was motivated by fear of reprisal. I postponed releasing the film because Dr. McLachlan and Mauro were convinced that once the university's concerns were met, the film would finally be released.

By December 2003, we had managed to apply for the film insurance. We were told we would have to pay a premium of \$50,000 for the film to be insured, which proved an impossible barrier for us. The University also threatened me with legal action if I did not give up the hard-drives and raw footage. As videographer and editor, I handed over the

hard-drives and raw footage as requested.

The Buyout

In response to the threat of a lawsuit, everyone and their lawyers met in the offices of the University of Manitoba's Smartpark. Located on the edge of campus at the University of Manitoba, the Smartpark is a new development of facilities and offices for biotech companies wanting to work closely with the university. During the meeting, it became clear that Alan Simms was going to arrange for the University of Manitoba to buy out our investor's interest in the film. My own lawyer suggested the simplest solution would be to ask Monsanto, a partner with the University, for film clearance. This way, they could not sue us and the film could be released, but this advice was ignored. Subsequently, in the spring of 2004, the University bought out the investor's interest in the Seeds of Change film for \$28,000.

Two years after the film was first completed, there has been little or no progress. The University continues to stall, stipulating ridiculous and contradictory conditions for the movie's release. For example, the University demands that it not be mentioned or associated with the film, while at the same time, it demands that the film contain a disclaimer saying they had nothing to do with it. It also continues to insist that we indemnify it for any possible damages or costs of fighting lawsuits, before agreeing to public release.

One would think that the University is a place where one could produce a film like Seeds of Change, without fear of institutional censorship and suppression. Instead, the University has done everything in its power to prevent this film from being seen by the public. Cases like this show how our universities are becoming corrupted from their original pursuit, bowing to corporate pressure, and even worse, censoring themselves.

Smartpark, Dumb Future

"Attracting Monsanto is a big win for Smartpark," Alan Simms, Smartpark president.

A sequel to Seeds of Change might open with an investigation into the relationship between Alan Simms, the new president of Smartpark, and Monsanto. Questions could

be asked about the relationship between this act of film censorship and the recent construction of Monsanto Canada's new headquarters in the Smartpark. Perhaps \$28,000 was a small sum to pay to avoid offending the new tenant?

As rural populations are being driven off the land by debt and destructive technology, the Manitoba and Federal governments, with the University of Manitoba, are allying themselves with the multinational corporations. Monsanto is the company that was recently fined \$700 million in Anniston, Alabama for knowingly dumping toxic PCBs into creeks and landfills for more than forty years. This is the same company that brought to the marketplace saccharin, agent orange, dioxin, PCBs, numerous pesticides and herbicides, bovine growth hormone, and of course GMCs.

Monsanto is a cancer. It makes us sick. It is a corporation connected to people like former US Attorney General, John Ashcroft, the present Secretary of Defense, Donald Rumsfeld, and U.S. president, George Bush. It is a corporation that actively supports and benefits from policies like Plan Colombia and the War in Iraq. The biotech industry stands to benefit immensely from the Bush administration's "War on Terror." There is money to be made in the global resource wars, and Monsanto is there to cash in.

A progressive Manitoba government would see beyond the gloss of the biotech industry, and begin to support family farms, protect the environment, and promote a sustainable future for its citizens. Our video was an attempt to give rural people and farmers, a voice in the debate about their future.

Harvest Moon Rising

In the fall of 2002, with the film almost complete, we used some of our investor's money to stage the Harvest Moon Festival in Clearwater, Manitoba. This was an event created to give something back to the rural communities who were helping us. We showed an early version of the film at the event to gather feedback from farmers. It is now 2005, and rural and urban volunteers have joined forces as the Harvest Moon Society. The festival is in its fourth successful year. The deserted elementary school in Clearwater has been bought by the Society and turned into the Harvest Moon Centre for Sustainable Living and Agriculture. Permaculture courses, eco-tourism, and a seed heritage initiative are already in the works. Regardless of the turmoil that has

surrounded the film, this bold community has managed to maintain what is important. The only way we can fill the void that governments, corporations and universities create when they neglect the concerns of rural communities, is to fix the situation ourselves. A united, independent and sustainable community is something the Monsanto's of the world can never destroy.

Until now, the University of Manitoba has effectively suppressed Seeds of Change. No longer. A free download of the film will be available in the near future from <http://www.dwdtv.org/> target=_blank">www.dwdtv.org.

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